



CHAPTER 28.

An Act to remove doubts as to, and to supplement, the powers of trustees in relation to insurance against war damage.
[2nd July 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Whereas doubts have arisen in the case of trustees holding upon trusts the execution of which is governed by the law of England or of Northern Ireland, as to their powers in relation to insurance under Part II of the War Damage Act, 1941, and it is expedient to remove the doubts as to, and to supplement, the said powers :

Power of
trustees in
relation to
insurance
against war
damage.

4 & 5 Geo. 6.
c. 12.

Now therefore :—

(1) A trustee shall have power, and shall be deemed at all material times to have had power, if and in so far as a contrary intention is not expressed in the instrument, if any, creating the trust and subject to the terms of that instrument—

(a) to effect any insurance which the Board of Trade are authorised to undertake under either of the schemes operated under Part II of the War Damage Act, 1941, up to the full value of the goods insured ; and

(b) for the purpose of paying the premiums for such insurance in accordance with section eighty-two of the said Act, to apply any capital money or securities subject to the same trusts as those affecting the goods insured, and, pending the making of provision for such application as aforesaid, to apply the income of any property subject to those trusts, without obtaining the consent of any person entitled wholly or partly to such money, securities or property or to the income thereof.

(2) Nothing in the preceding subsection shall be taken to prejudice or affect the power conferred on the Board of Trade by section sixty-seven of the War Damage Act, 1941, to refuse an application for the issue of a policy, or any power vested in a trustee by the instrument, if any, creating the trust or by law to effect an insurance against war damage otherwise than under the said schemes or against a risk other than war damage.

(3) In this Act the expressions "trust", "trustee", "instrument", and "securities", have the meanings assigned to them respectively by the Trustee Act, 1925.

15 & 16 Geo. 5.
c. 19.

(4) In the application of this Act to Northern Ireland, for the reference to the Trustee Act, 1925, there shall be substituted a reference to the Trustee Act, 1893.

56 & 57 Vict.
c. 53.

Short title.

2. This Act may be cited as the Trustee (War Damage Insurance) Act, 1941.

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